



CHAPTER xv.

An Act to confer further powers on the Newport Harbour Commissioners with reference to wrecks and abandoned vessels. A.D. 1919.
[29th May 1919.]

WHEREAS by the Newport (Monmouthshire) Harbour Act 1890 the Newport Harbour Commissioners (in this Act called "the Commissioners") were incorporated for the purposes therein mentioned and by the Newport Harbour Acts 1836 to 1906 various powers have been conferred upon the Commissioners :

And whereas it is expedient that further powers be conferred on the Commissioners as in this Act contained with reference to the removal or destruction of vessels sunk stranded or abandoned within the limits of the port or harbour of Newport or in the approaches thereto :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1.—(1) This Act may be cited as the Newport Harbour Act 1919. Short and collective titles.

(2) The Newport Harbour Acts 1836 to 1906 and this Act may be cited together as the Newport Harbour Acts 1836 to 1919.

2.—(1) Whenever any vessel is sunk stranded or abandoned in the harbour or in any approach thereto the Commissioners Removal of wrecks &c.
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A.D. 1919. may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear the harbour and its approaches therefrom.

(2) The Commissioners may cause any such vessel and the furniture tackle and apparel thereof or any part thereof respectively which shall be raised or saved and also after payment of any duties of Customs or Excise due thereon all or any part of the cargo goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto Provided always that in the case of a sale of goods required to be warehoused on importation the goods shall be duly warehoused before sale.

(3) If no part of such vessel or of such furniture tackle apparel cargo goods chattels and effects is raised or saved the Commissioners may recover the aforesaid expenses from the person who at the time of the sinking stranding or abandonment of the vessel was the registered owner of the vessel or from the executors or administrators of such owner as a debt either summarily as a civil debt or in any court of competent jurisdiction.

(4) If any part of such vessel furniture tackle apparel cargo goods chattels or effects is raised or saved but the proceeds of the sale thereof are insufficient to reimburse the Commissioners for the aforesaid expenses the Commissioners may recover the deficiency or in case of an appeal under subsection (5) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the person who at the time of the sinking stranding or abandonment of the vessel was the registered owner of the vessel or from the executors or administrators of such owner as a debt either summarily as a civil debt or in any court of competent jurisdiction.

(5) If on demand being made under this provision for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within

fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbitrator to determine and award whether any and what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Board of Trade that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (4) of this section. A.D. 1919.

(6) The powers given to the Commissioners by subsection (1) of this section shall not be exercised if the registered owner of the vessel sunk stranded or abandoned shall within twenty-four hours after the vessel shall have been sunk or stranded take such steps as may in the opinion of the harbour-master of the Commissioners be necessary for the raising or removal of the vessel and shall thenceforth continuously and diligently and to the satisfaction of the harbour-master prosecute and do all such works and things as may in the opinion of the harbour-master be necessary and proper for the raising and removal of the vessel as speedily as possible.

(7) The powers conferred by this section on the Commissioners shall be in addition to and not in derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

(8) The powers conferred by this section on the Commissioners shall be exerciseable by the Commissioners subject to the provisions of Part IX. of the Merchant Shipping Act 1894. so far as such provisions relate to the powers and duties of the Receiver of Wreck and nothing in this section contained shall lessen abridge or prejudicially affect the exercise by the said receiver of such powers or duties or any of them.

(9) In this section the expression "harbour" means the port or harbour of Newport as defined in section 5 of the Newport (Monmouthshire) Harbour Act 1890.

3. The statement of accounts referred to in section 43 (Accounts to be audited and published) of the Newport (Monmouthshire) Harbour Act 1890 shall be sent in every year by Accounts to be sent to Board of Trade.

A.D. 1919. — the clerk to the Commissioners to the Board of Trade at the same time as the clerk shall cause a copy of the said statement of accounts or a summary thereof to be inserted in a newspaper in accordance with the said section and if the clerk shall wilfully fail to comply with the provisions of this section he shall for every such offence be liable to a penalty not exceeding twenty pounds.

Saving
rights of
Crown.

4. Nothing in this Act shall extend or be construed to pre-judicially affect any estate right power privilege or exemption of the Crown.

Costs of Act.

5. All the costs charges and expenses of and incident to the applying for obtaining and passing of this Act shall be paid by the Commissioners out of any funds (including borrowed moneys) for the time being in their hands.

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